

Exactions:

the inclusionary requirement and impact fees that vested for each project

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Abstract

The model’s deterministic cost τ has a dollar-denominated part that the law writes down: the inclusionary housing requirement and the development impact fees. This memo assembles the version history of both from primary sources — the enacted ordinances, the codified Planning Code as its publisher served it, the Board’s own lists of effective dates, and the city’s fee registers from 2011 to 2026 — and builds the panel the brief asks for: for each residential project, the requirement that vested for it and its dollar value.

Every legal fact in the panel is a quotation that a script re-checks. The schedule rests on 394 claims — 112 about the law and 282 register rates — each naming its source and quoting it verbatim; all 394 are found in their sources’ text. The inclusionary program has had 8 versions since 2002-04-05 (Table 1). What vests has changed as well: the share was fixed by the first application until 2013 and by the complete environmental application from 2016; the impact-fee rate was the one in force when the fee was paid until 2023-10-16, and is the one in force at approval since.

A new building of ten or more units owes about \$61k per unit. Across the 400 such buildings priced in full (impact fees vested 2011–2026, 100% affordable projects excluded), the median obligation is \$61k per unit (interquartile range \$50k–\$78k), 20% of DBI’s valuation (15–28%), and the inclusionary fee is 81% of it. Commission-linked projects owe about what unlinked ones do: \$62k against \$58k per unit.

New buildings bunch just below the inclusionary threshold, in every version. Among buildings filed since 2016-06-12, 18 have nine units and 5 have ten; 10 have 24 and 4 have 25. When the threshold was five units, 14 buildings had four and 4 had five. The step at ten units is worth \$420k at 2026 rates. These are counts, not an elasticity.

The schedule agrees with the percentage the Commission’s conditions print in 53% of the 121 cases where the two can be compared — 84% for the 2006 version, 35% for the 2016 grandfathered tiers. The disagreements locate what is not yet established: area-specific requirements, and how the 2016 grandfathering deadline was applied.

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1 What this memo is for

The model separates a deterministic cost τ from uncertainty σ . Part of τ is written into the Planning Code in dollars and percentages: what a residential project must give up in affordable units or pay in fees. The brief’s Part 1 asks for a panel giving, for any parcel, application date, tenure, unit-count tier and fee area, the obligation that vested — the inclusionary requirement on, off, or as a fee, and each impact fee — with every version sourced; for the vesting rule at the complete or preliminary application; for a density-bonus flag; and for four uses of it: the rate history, the distribution of obligations over the development universe and the Commission-linked projects, filing around rate changes, and the ten-unit notch.

The panel is stored factored rather than as the full cross product: a schedule (version by date, tier and tenure), a register rate table (fee by year), a parcel-to-fee-area table, and one row per actual project with the obligation that vested for it (Section 6). The function `inclusionary_terms` expands the first three for any parcel, date, tenure and tier.

2 Sources and the standard of proof

A legal fact enters the panel only as a row of `exaction_sources.csv`: the claim, its value, the source URL, and a quotation taken from the source’s cached text by a regular expression, so that the quotation is verbatim by construction. `probe` re-reads every source and checks that every quotation is in it; a claim that fails is carried and marked, not dropped. All 394 of the 394 claims pass. The legal claims are listed in Table 8.

Where the text layer lies. The enacted ordinances are scanned. Struck and inserted text both survive in the text layer, and the struck figure is often garbled; a quotation of an amended percentage can therefore carry both. Where the text layer garbles a figure the claim was read on the rendered page, and its note says so — for example, Ordinance 201-23’s pipeline fee share of 16.4% for projects of ten or more units, where the page shows “25” struck and “10” inserted.

The sources. The enacted ordinance PDFs (37-02, 213-06, 219-06, 62-13, 76-16, 158-17, 193-23 and 201-23); the Board’s per-year ordinance lists, which carry effective dates from 2011; Legistar’s record where the lists do not; the codified Planning Code as American Legal Publishing served it, through Wayback Machine captures of 2020–2022; the state sources on leginfo; and the city’s Development Impact Fee Registers. The registers for 2019–2026 are the copies `acquire_external_data.py` downloaded; the 15 in all run from 2011 to 2026, the earlier ones posted by DBI and Planning and recovered from the Wayback Machine. No register for 2017 was found under any of the three sites’ URL patterns.

A correction to the source cache. On 2026-09-11 the archive answered a request for the 2019 register’s capture with the 2020 register. The fetcher now refuses a capture other than the one cited, and the 2019–2026 registers are read from the copies downloaded on 2026-09-08.

3 The versions of the inclusionary program

Table 1 is the chain. The 2002 program (Ordinance 37-02, effective 2002-04-05) applied to projects of 10 or more units filed from 2001-06-18: 10% on site, 12% for conditional uses and PUDs, and an in-lieu fee equal to the off-site unit count times an affordability gap. In 2006 Ordinance 213-06

Table 1: The inclusionary versions, as the enacted ordinances state them. Shares are percent of the project’s units; R rental, O ownership; a slash separates the 10–24 and 25+ unit tiers. Every figure is a verified claim in `exaction_sources.csv` (Section 2).

Version	Source	In force from	Which projects	On-site	Fee	Off-site	Units
2002	Ord. 37-02	2002-04-05	first application from 2001-06-18	10 (12 CU/PUD)	15 (17)	= off-site	10+
2006	Ords. 213-06, 219-06	2006-09-09	first application from 2006-07-18	15	20	20	5+
2013	Ord. 62-13	2013-05-10	same; 5–9 units out without a first construction document by 2013-01-15	12	20	20	10+
2016	Prop. C; Ord. 76-16	2016-06-12	complete EEA; EEA 2013–2016-01-12 grandfathered (25+: 13/13.5/14.5 on-site, 25/27.5/30 fee) if approved by 2018-12-07	12 / 25	20 / 33	20 / 33	10–24 / 25+
2017	Ord. 158-17	2017-08-26	complete EEA after 2016-01-12; on-site share rises each January 1 by EEA year	12→15 / 18→24 R, 20→26 O	20 / 30 R, 33 O	20 / 30 R, 33 O	10–24 / 25+
2023 pipeline	Ord. 201-23, 415A	2023-11-12	approved before 2023-11-01, no first construction document; on request by 2026-11-01	12	16.4	16.4	10+
2023 window	Ord. 201-23, 415B	2023-11-12	approved 2023-11-01 to 2026-11-01, first construction document within 30 months	15 (25+)	20.5 (25+)	20.5 (25+)	25+
2026	Ord. 201-23, s. 7	2026-11-21	operative 2026-11-21 unless amended	15 / 20 O	20 / 24.5 R, 27 O	—	10–24 / 25+

lowered the threshold to five units for projects whose first application came on or after 2006-07-18, and Ordinance 219-06 raised the shares to 15% on site and 20% off site. Ordinance 62-13 (effective 2013-05-10) cut the on-site share to 12% and put the threshold back to ten for five-to-nine-unit projects without a first construction document by 2013-01-15. Proposition C, approved by the voters on 2016-06-07, amended Charter Section 16.110 to let the city change the requirement by ordinance; Ordinance 76-16 (2016-06-12), whose new percentages took effect only with that amendment, split the requirement at 25 units — 33% as a fee above it — and grandfathered projects with a complete environmental evaluation application (EEA) filed from 2013-01-01 to 2016-01-12 at intermediate rates, if approved by 2018-12-07. Ordinance 158-17 (2017-08-26) set the tenure-specific rates in force until 2023 and an on-site share that rises every January 1 with the EEA year. Ordinance 201-23 (2023-11-12) added two temporary regimes — relief on request for the pipeline approved before 2023-11-01, and lower rates for projects approved in the three years after it that obtain a first construction document within the deadline its Section 415B sets — and a new schedule operative 2026-11-21 unless the city amends it first.

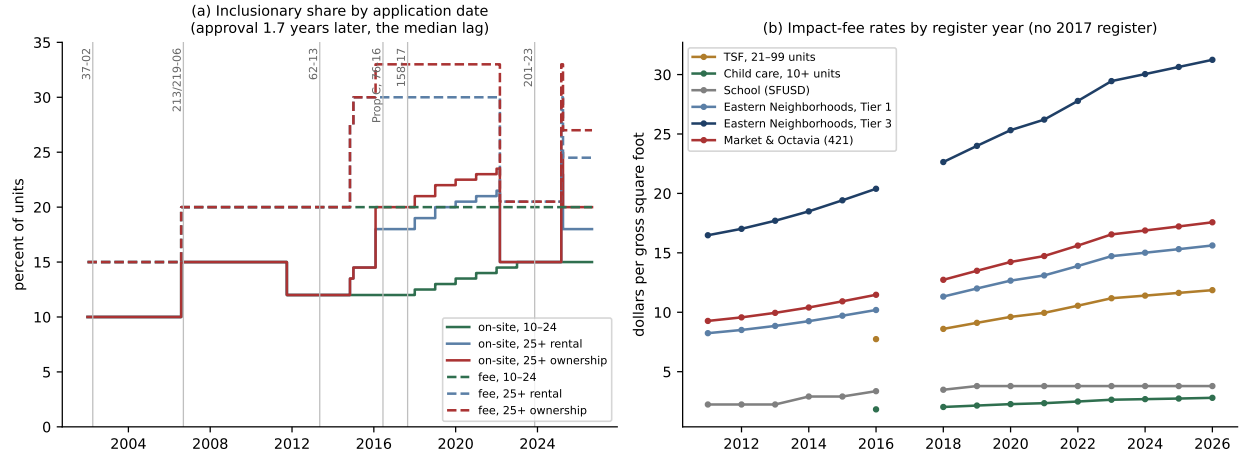


Figure 1: (a) The inclusionary share that vests, by application date, for a project approved 1.7 years later (the panel’s median lag), from `inclusionary_terms`; grey lines mark the ordinances’ effective dates. (b) The register rates of the main residential impact fees; 2017 is a gap, not a line.

4 Vesting: when each part is fixed

Table 2: When each part of the obligation is fixed, and the claim that says so.

Component	Fixed at	Claims
Inclusionary share (%)	the first application (2002–2013; 62-13’s Table 415.3); the complete EEA from 2016, with the on-site escalation read at the EEA date; approval-date windows in 2016–18 (grandfathering deadline) and 2023–26 (415A, 415B); lapses without a site or building permit within 30 months of approval	<code>inc2013.table_july18</code> , <code>cod.4155_vesting</code> , <code>cod.4156_vesting</code> , <code>cod.4153_deadline</code> , <code>cod.4155_30months</code>
Inclusionary fee (\$)	the share x MOHCD’s rate at payment, due at the first construction document; the fee is outside 193-23’s approval-date freeze	<code>cod.4155_timing</code> , <code>inc2016_fee_timing</code> , <code>fee_193_approval</code>
Impact fees (types and \$)	before 2023-10-16: the rate in force when paid, whatever the filing date; from 2023-10-16: the types and rates in force at Final Approval	<code>fee_rate_at_payment</code> , <code>fee_402d_timing</code> , <code>fee_193_approval</code> , <code>fee_193_effective</code>
Everything, for a housing project with an SB 330 preliminary application (2020–)	the ordinances, policies and standards in force at the complete preliminary application, fees included, except automatic index adjustments	<code>sb330_freeze</code> , <code>gov_standards_fees</code> , <code>sb330_index_exception</code>

The share, 2002–2013: the first application. Ordinance 219-06 says the prior requirements apply to a project with a first site or building permit before its effective date; Ordinance 62-13’s own summary table keys the 2006 percentages to “all projects that submitted a first application on or after July 18, 2006” and says the implementing ordinances prevail over the table. The panel follows the table, and the conditions agree with it: of the 19 cases the schedule places under the 2006 version, 84% print a percentage it assigns, and 69% of the 13 under the 2002 version — most of them filed before July 2006 and approved years later at the 2002 rate. The same table dates the

2006 amendments’ operation to 2006-09-09, which is also Legistar’s passage date plus the standard 30 days (2006-09-09).

The share, from 2016: the complete EEA. The codified Sections 415.5 and 415.6 fix the fee and the on-site percentage by “the date that the project sponsor has submitted a complete Environmental Evaluation application”, and the escalating on-site share is read at that date. Two approval-date rules cut across it: the 2016 grandfathering lapses for a project not approved by 2018-12-07, and any vested requirement lapses without a site or building permit within 30 months of approval. The law is silent on one window: a project filed after 2016-01-12 and approved before 2017-08-26 must comply with “Sections 415.5, 415.6 and 415.7, as applicable”. The panel applies the version in force at approval.

The fee in dollars: at payment. The inclusionary fee is the vested share priced at the rate in force when it is paid, at the first construction document; the fee is expressly outside the 2023 approval-date freeze. Until the 2018 register the rate is an affordability gap per unit by bedroom count; from 2019 it is a rate per gross square foot of residential floor area times the share.

Impact fees: at payment, then at approval. Every register from 2011 to 2025 says in its introduction that the adjusted rates “apply to development impact fees paid on or after the effective date of any such fee adjustments, regardless of the date of permit filing”; the sentence is gone from the register of 2026. Ordinance 193-23 (effective 2023-10-16) fixed the types and rates at Final Approval. From 2020 a housing project with a complete SB 330 preliminary application is subject only to the standards in force when it was filed, fees included, except for automatic index adjustments; the panel flags the 42 projects whose planning records mark SB 330 and does not re-date them.

Options, not assignments. The 2023 pipeline relief is a modification the sponsor requests (94 projects are eligible); the 2023–26 rates apply only if the first construction document follows approval within the deadline Section 415B sets. The panel carries the first beside the vested requirement and applies the second where the permit dates show the condition met.

5 The dollar rates

Table 3: Residential rates by register year, dollars per gross square foot except the inclusionary affordability gap (dollars per unit, used until the 2019 register). Each cell is a verified claim quoting the register. No 2017 register was found.

Rate	2011	2012	2013	2014	2015	2016	2018	2019	2020	2021	2022	2023	2024	2025	2026
Inclusionary, per 1-bedroom (gap)	248,210	248,210	236,545	261,271	270,441	268,960	268,960								
Inclusionary, per gsf								199.50	210.47	217.84	230.91	244.76	249.66	249.66	249.66
TSP, 21–99 units						7.74	8.60	9.11	9.61	9.95	10.55	11.18	11.40	11.63	11.86
TSP, 100+ units						8.74	9.71	10.29	10.86	11.24	11.91	12.62	12.87	13.13	13.39
Child care, 10+ units						1.83	2.03	2.15	2.27	2.35	2.49	2.64	2.69	2.74	2.80
Child care, 1–9 units						0.91	1.02	1.08	1.14	1.18	1.25	1.33	1.36	1.39	1.41
School (SFUSD)	2.24	2.24	2.24	2.91	2.91	3.36	3.48	3.79	3.79	3.79	3.79	3.79	3.79	3.79	3.79
Eastern Neighborhoods, Tier 1	8.24	8.51	8.85	9.25	9.71	10.19	11.32	12.00	12.66	13.10	13.89	14.72	15.01	15.31	15.62
Eastern Neighborhoods, Tier 3	16.48	17.02	17.70	18.49	19.42	20.39	22.64	24.00	25.32	26.21	27.78	29.45	30.04	30.64	31.24
Market & Octavia (421)	9.27	9.57	9.95	10.40	10.92	11.47	12.73	13.49	14.23	14.73	15.61	16.55	16.88	17.22	17.57
Market & Octavia affordable (416, NCT)	3.71	3.83	3.98	4.16	4.37	4.59	5.10	5.40	5.70	5.90	6.25	6.63	6.76	6.90	7.03
Rincon Hill	8.86	9.15	9.51	9.94	10.44	10.96	12.17	12.90	13.61	14.09	14.94	15.84	16.16	16.48	16.79
SOMA stabilization	11.28	11.65	12.11	12.66	13.29	13.95	15.49	16.42	17.32	17.93	19.01	20.15	20.55	20.96	21.38
Visitation Valley	4.72	4.87	5.07	5.29	5.56	5.84	6.48	6.87	7.25	7.50	7.95	8.43	8.60	8.77	8.94
Balboa Park	8.24	8.51	8.85	9.25	9.71	10.19	11.32	12.00	12.66	13.10	13.89	14.72	15.01	15.31	15.62
Central SoMa 433, Tier B condo								20.00	21.10	21.84	23.15	24.54	25.03	25.53	26.04

Table 3 gives the residential rates. The area fees are charged only from the date each took effect — the Eastern Neighborhoods fee from 2008-12-19, Market and Octavia’s from 2008-04-03, Rincon Hill’s from 2005-08-19, Central SoMa’s from 2019-01-12 — on the parcels today’s fee-area layer places in them. The Transportation Sustainability Fee applies to projects of 21 or more units from 2015-12-25, the residential child-care fee from 2016-02-18. The jobs-housing linkage fee is a commercial fee and is not charged to housing. For the 2017 rate year the panel uses the geometric mean of the 2016 and 2018 rates and flags the projects priced with it.

6 The panel

The frame is every DBI new-construction permit (types 1 and 2) in the permits memo’s development-relevant universe that adds at least one unit and was filed from 2001-06-18, with a Commission case collapsed to its principal permit: 3,574 projects, 966 of them Commission-linked, 843 of ten or more units. The 4,039 alterations that add units are set aside: after screening out revisions and equipment permits they are still as often shoring and fire-main permits for a new building, carrying its unit count, as they are conversions.

Table 4: Coverage: what each project’s dates, floor area and tenure come from, and how many are priced. New construction (DBI permit types 1 and 2) adding at least one unit, one row per project (a Commission case collapsed to its principal permit).

	All	10+ units
Residential new-construction projects filed since 2001-06-18	3,574	843
of which Commission-linked (T1/T2)	966	380
Application date from a planning record	2,629	671
Application date = the DBI filing (no planning record found)	945	172
Approval = a Commission action	799	312
Approval = DBI approval or issuance	2,003	385
Not yet approved (held to the version in force)	772	146
First construction document recorded by DBI	1,816	490
issuance used in its place	769	127
Floor area from a PRJ record	919	395
Floor area assumed (units x median)	2,655	448
Tenure known (MOHCD pipeline)	63	62
Tenure from description words only	171	82
100% affordable (outside the program)	188	161
Density bonus mentioned (state or HOME-SF)	49	45
Obligation marked uncertain (density bonus, UMU or SB 330)	118	88
SB 330 preliminary application flagged	42	24
In a UMU district (Section 419 replaces the citywide rates)	49	39
Eligible for the 2023 pipeline relief (415A)	94	94
Under the 2023–26 window (415B)	59	59
Impact fees cut 33% (201-23’s temporary reduction)	124	27
Rate year 2017 (no register: interpolated)	178	39
Priced in full (inclusionary and every impact fee)	1,723	498

Dates. The application date is the earliest environmental or project application record of the case, else of any planning record that lists the permit, else the DBI filing (26% of projects, flagged). An environmental record’s open date can precede its acceptance as complete, so the EEA date is

approximate. Approval is the Commission’s approving action, else DBI’s approval or issuance; a project not yet approved is held to the version in force at retrieval.

Floor area. A project’s residential floor area comes from its PRJ record where one is linked and plausible for its unit count; otherwise it is the unit count times the median of 841 gross square feet per unit across 1,284 PRJ records of ten or more units (interquartile range 645–1,086). 74% of projects use the assumption. It is an assumption, and it scales every per-square-foot fee.

Tenure, affordability, density bonus. Tenure matters only above 25 units under 158-17 and for the Central SoMa fee. It is known for the projects MOHCD monitors and read from descriptions for a few more; elsewhere the panel carries both and reports rental as the lower bound. Projects that are 100% affordable (Housing Production, MOHCD, or the description) are outside the program and out of the distributions. The density-bonus flag is set by the pipeline dataset’s state density-bonus field or a mention in the permit, planning-record or minutes text; the fee applies to bonus units, so the flag marks a project whose unit count includes them, and its obligation — like those of the UMU and SB 330 projects — is marked uncertain in the panel (`obligation_uncertain`).

What is not modelled. Area-specific inclusionary requirements — Section 419 in the UMU districts, special use districts, and the other areas Ordinance 201-23 lists — replace the citywide shares — on 49 projects in UMU parcels alone; the panel keeps the citywide figures and flags them. Credits for existing uses are not taken, so impact fees are gross. The TSF’s own grandfathering of earlier-filed projects is not modelled. The Van Ness and Market fee, charged on floor area above a floor-area-ratio threshold, needs the FAR.

7 The obligation

Table 5: The priced obligation of new buildings of 10 or more units, per unit and as a share of DBI’s valuation, by the year the impact fees vested. Lower bound: rental rates where tenure matters; upper: ownership. Quantiles across projects.

Vested	Group	<i>n</i>	\$ per unit (lower bound)			Share of valuation (%)		
			p25	median	p75	p25	median	p75
2011–15	all	131	\$45k	\$52k	\$57k	14	18	25
	Commission-linked	87	\$45k	\$52k	\$57k	14	18	25
	not linked	44	\$48k	\$52k	\$57k	14	18	23
2016–19	all	145	\$63k	\$71k	\$91k	18	23	30
	Commission-linked	92	\$63k	\$72k	\$91k	18	23	30
	not linked	53	\$63k	\$69k	\$88k	19	23	28
2020–23	all	99	\$49k	\$66k	\$88k	14	20	27
	Commission-linked	60	\$52k	\$76k	\$104k	17	22	29
	not linked	39	\$46k	\$60k	\$70k	11	17	22
2024–26	all	25	\$53k	\$64k	\$88k	13	19	26
	Commission-linked	15	\$57k	\$80k	\$93k	16	23	34
	not linked	10	\$53k	\$54k	\$61k	10	14	18

Table 5 and Figure 2 give the distribution for new buildings of ten or more units priced in full. The median per unit rose from \$52k for fees vested in 2011–15 to \$71k in 2016–19 and was \$66k

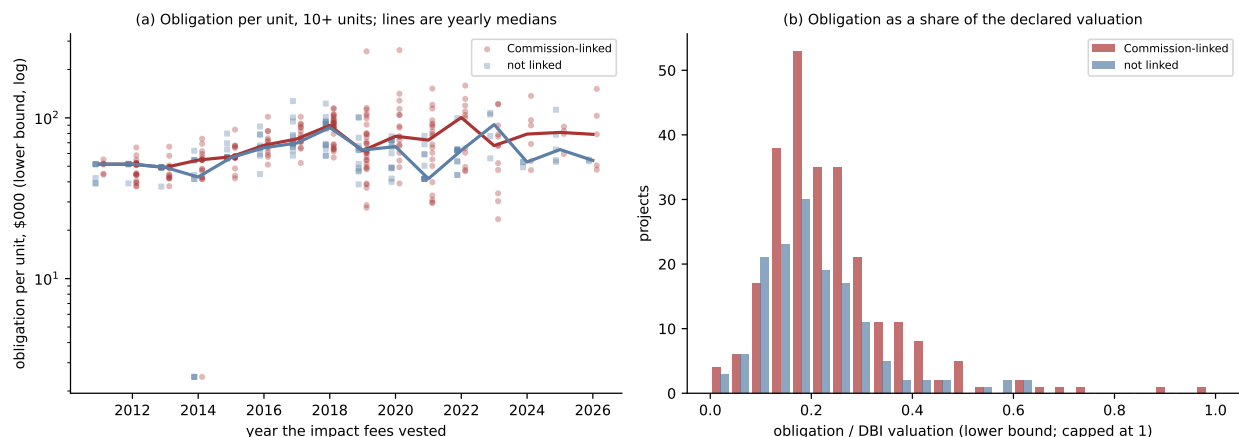


Figure 2: (a) Obligation per unit for new buildings of ten or more units, by the year the impact fees vested; points are projects, lines yearly medians. (b) The obligation as a share of DBI’s valuation. Lower bound (rental rates where tenure matters).

and \$64k after. The inclusionary fee is most of it. Where tenure matters, the gap between the rental and ownership figures is \$0k per unit at the median.

Three cautions. The inclusionary requirement is priced at its fee, the price at which a sponsor may buy out of building the units; a sponsor who builds on site chose to, so the fee bounds the requirement’s cost to that sponsor from above. The valuation is DBI’s declared cost, which the permits memo found understated, so the share of cost is an upper bound in the same direction. And the impact fees are gross of credits.

Commission-linked and not. The two groups owe similar amounts per unit (\$62k and \$58k at the median) and similar shares of valuation (21% and 19%). Nothing here conditions on the project’s size, place or year; the comparison is a description.

8 The schedule against the Commission’s conditions

The conditions memo’s numeric extraction reads the inclusionary percentage printed in a case’s conditions of approval. Where the case is in the panel the two can be compared (Table 6): 121 cases (260 condition rows), of which 53% print a percentage the schedule assigns the case, and 57% of the 107 outside the UMU districts and not wholly affordable.

The disagreements are informative. Under the grandfathered and lapsed versions agreement is low (35% of 17, 46% of 13): several projects approved after 2018-12-07 print the grandfathered 13.5 or 14.5 percent, which the text of Section 415.3 says they had lost, and some print the tier of the following year, which an EEA accepted later than its record opened would explain. Some approvals in the months before Ordinance 62-13 took effect already print its 12 percent; Proposition C of 2012-11, which Ordinance 76-16 cites as codified in Charter Section 16.110, is a candidate explanation whose terms were not read here. And the UMU and plan-area cases print the area rates the panel does not model. The first two are the schedule’s open questions; the conditions are the Commission’s statement of what it imposed, so they are evidence about how the rules were applied, not errors to be corrected.

Table 6: The schedule against the Commission’s own conditions: cases whose conditions print an inclusionary percentage (`conditions_numeric.parquet`), and whether that percentage equals one the schedule assigns the case (on-site, fee or off-site, either tenure, or the 415A option). A case agrees if any of its printed percentages does.

Version assigned	Cases	Agree	%
100% affordable (outside the program)	3	0	0
2002 (Ord. 37-02)	13	9	69
2006 (Ords. 213-06, 219-06)	19	16	84
2013 (Ord. 62-13)	23	12	52
2016 grandfathered tiers (Ord. 76-16, 415.3(b))	17	6	35
2017 (Ord. 158-17)	30	15	50
2017 (Ord. 158-17), grandfathering lapsed	13	6	46
2023 window (Ord. 201-23, 415B)	3	0	0
All	121	64	53
Outside UMU, not 100% affordable	107	61	57

9 Filing around rate changes

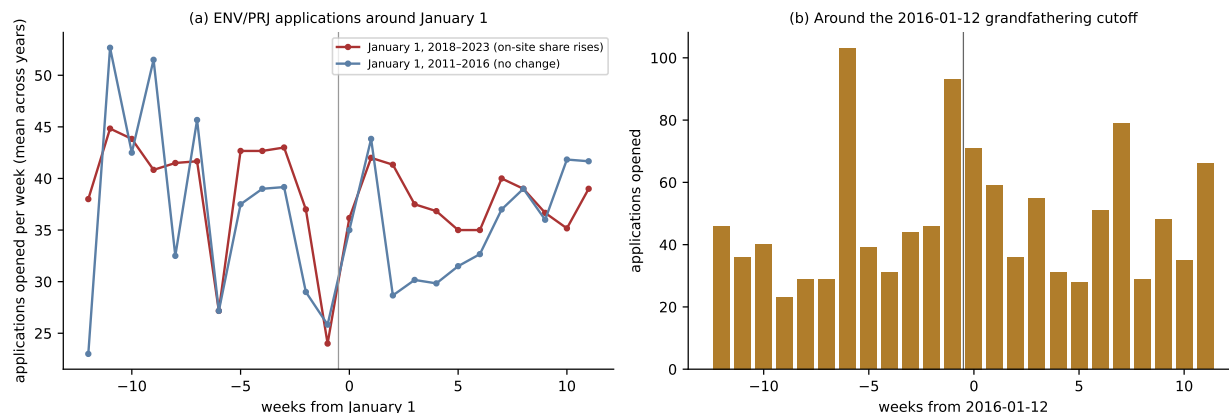


Figure 3: (a) Environmental and project applications opened per week around January 1, averaged over the years in which the on-site share rose on that date and over earlier years in which it did not. (b) Around the 2016 grandfathering cutoff.

From 2018 the on-site share rose each January 1 and was fixed by the EEA date, so a sponsor ready to file had a reason to file in December. In the four weeks before those January 1st 880 applications opened and in the four weeks after 942 (ratio 0.93); in the same weeks of 798 against 826 in years without an escalation (0.97). Among PRJ records stating ten or more units the counts are 83 and 70. Around the 2016 cutoff, 214 and 221. There is no visible bunching.

This is a description. To be an estimate it needs the counterfactual weekly count — the holiday weeks are low every year, which is why the no-escalation years are shown — a subset of applications for which the escalation binds (projects of ten or more units, which the records identify only from 2018), and the size of the step, which is 0.5 to 1.0 percentage points of the units. An EEA’s open date is the record’s creation, not its acceptance as complete, and the two can differ by weeks.

10 The ten-unit notch

Table 7: New buildings by unit count around the thresholds, by filing period (100% affordable projects excluded). The inclusionary threshold is 10 units except 2006–2013, when it was 5; from 2016 a second tier begins at 25; the TSF begins above 20.

Filed	4	5	6	8	9	10	11	19	20	21	22	23	24	25	26
threshold 10 (37-02)	28	11	31	22	8	4	2	3	6	5	2	1	3	1	6
threshold 5 (213-06)	14	4	8	6	6	2	2	2	2	3	0	2	1	2	0
threshold 10 (62-13)	13	5	8	3	13	1	8	2	6	4	1	2	3	0	0
threshold 10; 25+ tier (76-16, 158-17)	42	22	15	16	18	5	3	2	4	1	3	0	10	4	0

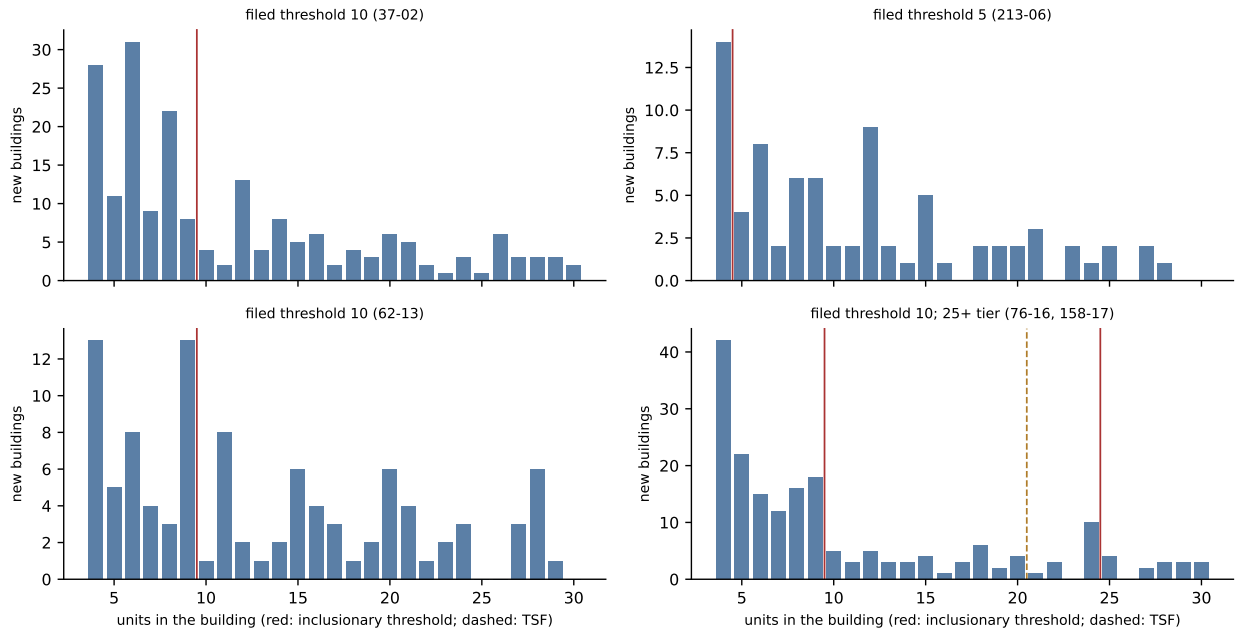


Figure 4: New buildings by unit count, by the version in force when they were filed; red lines mark the inclusionary threshold (and from 2016 the 25-unit tier), the dashed line the TSF’s.

A building of ten units owes the inclusionary requirement on all ten; one of nine owes nothing. At 2026 rates the fee on a ten-unit building of median floor area is \$420k (\$42k a unit). From 2016 the fee share rises at 25 units, which is worth \$525k on a 25-unit rental building (\$26k under the 2023–26 rates), and the TSF begins above 20 units (\$209k on a 21-unit building).

In every version the count drops at the threshold (Table 7, Figure 4). Since 2016, 18 new buildings have nine units and 5 have ten; 10 have 24 and 4 have 25; 4 have 20 and 1 have 21. From 2006 to 2013, when the threshold was five, 14 had four and 4 five, and nine and ten units were 6 and 2. The counts are small and the unit-count distribution falls with size anyway; what makes the pattern notable is that the drop moves with the threshold. An estimate would compare the mass just below each threshold with a smooth counterfactual fitted away from it, with the zoning envelope held fixed — the parcel’s permitted density caps the unit count too, which is Part 5’s panel.

11 Established and not established

Established.

1. The version chain of the inclusionary program from 2002 through the schedule operative 2026-11-21, every percentage and date quoted from the enacted ordinance, the codified section or the Board's list, all 394 claims verified against their sources.
2. The residential impact-fee rates for every register year 2011–2026 except 2017, quoted from the registers.
3. What vests when: the share by first application (2002–2013) and complete EEA (2016–); the inclusionary fee in dollars at payment; impact fees at payment until 2023-10-16 and at Final Approval since.
4. A new building of ten or more units priced in full owes a median \$61k per unit, most of it the inclusionary fee, and Commission-linked projects owe about what others do.
5. New buildings are fewer just above each inclusionary threshold than just below it, and the drop moves with the threshold.

Not established.

1. How the 2016 grandfathering deadline and the tier dates were applied: conditions of projects approved after 2018-12-07 print grandfathered rates.
2. Which version bound a project filed between 2016-01-12 and 2017-08-26 and approved after the latter; the panel's rule (the version at approval) is an assumption.
3. Area-specific requirements (UMU, special use districts) and the TSF's grandfathering; credits for existing uses; the 2017 rates; dollar rates before 2011.
4. Floor area for the projects without a PRJ record, and tenure for most projects.
5. Any behavioural response: the bunching and notch sections are counts.

12 What remains

- Source the area-specific requirements (Section 419's UMU tiers, Section 415.3(d) and the special use districts) and model them.
- Find the 2017 register and the pre-2011 registers (DBI posted them; the archive holds some from 2011).
- Resolve the grandfathering questions from MOHCD's published tables and the Planning Department's inclusionary affidavits.
- Take the TSF's grandfathering rules and existing-use credits from the codified sections.
- Estimate the notch and the filing response, with the envelope from Part 5.

13 Reproducing this

```
cd code/commission_minutes_processing
python build_exaction_panel.py fetch      # ordinance lists; every cited source
python build_exaction_panel.py claims    # write exaction_sources.csv
python build_exaction_panel.py probe     # verify every quotation
python build_exaction_panel.py build     # the project panel
python build_exaction_panel.py report    # tables, figures, macros
```

Outputs: \$MFHR_DATA_ROOT/external/exactions/ (exaction_projects.parquet,
rate_table.csv, parcel_fee_areas.parquet, claims_checked.csv,
crosscheck_conditions.csv, bunching_weeks.csv, notch_counts.csv); the sources
and their text under external/legal/. The build reads the permit table and link-
age of analyze_permit_content.py and the planning records and fee-area join of
acquire_external_data.py.

A The legal claims

Table 8: Every legal claim the schedule reads, with its value and the first words of its quotation. The register rates (282 further claims) are in `exaction_sources.csv`.

Claim	Field	Value	Quotation (start)
inc2002_apply	applies to applications filed on or after	2001-06-18	<i>on or after June 18, 2001 for housing projects which</i>
inc2002_threshold	unit threshold	10	<i>consist often or more units; and do not require</i>
inc2002_onsite_10	on-site share, no CU/PUD	10	<i>315.3(a)(1), as a condition of Planning Department approval of a project's building pennit, that 10%</i>
inc2002_onsite_12	on-site share, CU/PUD/live-work	12	<i>live/work project that 12 12% of all units constructed on the project site</i>
inc2002_offsite_15	off-site share, no CU/PUD	15	<i>For projects described in 315.3(a)(1), 15% as follows</i>
inc2002_offsite_17	off-site share, CU/PUD/live-work	17	<i>For projects described in 315.3(a)(2),(3), and (4), 170/0 as follows</i>
inc2002_fee_basis	in-lieu fee basis	off-site unit count x affordability gap	<i>The number of units required by Section 315.5 if the project applicant were to elect to 8 meet the requiremen...</i>
inc2002_transition	transitional on-site share, first 180 days, no CU/PUD	5	<i>from the effective date of this legislation and 180 days thereafter shall be 5%</i>
inc2002_effective	program effective date	2002-04-05	<i>(b) The effective date of these requirements shall be either April 5, 2002, which is the</i>
inc2006_5to9	threshold lowered to 5 units for first applications on or after	2006-07-18	<i>first application, including an environmental evaluation application or any other Planning 17 Department ap...</i>
inc2006_onsite_15	on-site share, all project types	15	<i>applicant must construct c . /5 times the total number</i>
inc2006_offsite_20	off-site share	20	<i>H% 20% so that a project applicant must construct</i>
inc2006_vesting	vesting: first site or building permit before the effective date keeps prior requirements	first site/building permit	<i>projects that have received a first site or building permit prior to the effective date of this 3 legislati...</i>
inc2006_passed	Ord. 219-06 finally passed	2006-08-01	<i>FINALLY PASSED on August 1, 2006</i>
inc2006_sep9	the 2006 amendments operative from	2006-09-09	<i>approval on or after September 9, compliance option 2006</i>
inc2006_enacted	Ord. 219-06 passed date in Legistar	2006-08-10	<i>"MatterPassedDate": "2006-08-10T00:00:00"</i>
inc2013_table_fee20	fee share, first application on or after 2006-07-18	20	<i>20% Fee</i>
inc2013_table_onsite12	on-site share, first application on or after 2006-07-18 (as of 62-13)	12	<i>12% on-site*</i>
inc2013_table_offsite20	off-site share, first application on or after 2006-07-18	20	<i>20% off-site*</i>
inc2013_table_july18	date column of the percentages row	2006-07-18	<i>application on or after July 18, 2006 .J..§.12% on-site*</i>
inc2013_threshold10	threshold back to 10: 5-9 unit projects without a first construction document by	2013-01-15	<i>construction document as of January 15, 2013</i>
inc2013_table_disclaimer	the ordinances prevail over the table	yes	<i>the 23 implementing ordinances shall prevail</i>

Claim	Field	Value	Quotation (start)
inc2013_effective	Ord. 62-13 effective	2013-05-10	<i>121162 0062-13 05/10/2013 Planning Code - Inclusionary Affordable Housing Program, Updates, and Clarificati...</i>
inc2016_fee20	fee share, 10-24 units	20	<i>The applicable percentage shall be 20% percent [or 19 housing development projects consisting of 10 dwellin...</i>
inc2016_fee33	fee share, 25+ units	33	<i>consisting of 25 dwelling units or more shall be 21 33%</i>
inc2016_onsite	on-site share, 10-24 / 25+ units	12 / 25	<i>that 12% or 25% percent, as applicable</i>
inc2016_fee_timing	fee due at first construction document	first construction document	<i>at the time of and in no 1 O event later than issuance of the first construction document</i>
propc2016	Proposition C (Charter 16.110) approved by the voters	2016-06-07	<i>following voter approval of Proposition Cat the June 7, 2016 election to revise the 13 City Charter's inclu...</i>
propc2016_contingent	76-16's new percentages effective only with the June 2016 Charter amendment	Charter 16.110	<i>will become effective only on the effective date of the 16 Charter amendment revising Section 16.110 at the...</i>
propc2012	Proposition C (November 2012) codified in part as Charter 16.110	2012-11	<i>In V-ovember 2012 the voters amended the Charter by adopting Pr0J3osition C</i>
ord_effective_30days	SF ordinances take effect 30 days after enactment	30 days	<i>This ordinance shall become effective 30 days after 16 enactment</i>
inc2016_effective	Ord. 76-16 effective	2016-06-12	<i>160255 0076-16 06/12/2016 Planning, Administrative Codes - Inclusionary Affordable Housing Fee and Requirem...</i>
inc2017_effective	Ord. 158-17 effective	2017-08-26	<i>161351 0158-17 08/26/2017 Planning Code - Inclusionary Affordable Housing Fee and Dwelling Unit Mix Require...</i>
inc2017_cutoff	the keep-prior-requirements cutoff moved from 2013-01-01 to 2016-01-12	2016-01-12	<i>application prior to January 4, 12, 2016 shall comply with the Affordable Housing Fee</i>
inc2017_after2016	EEA after 2016-01-12: Sections 415.5-415.7 as applicable	2016-01-12	<i>Any development project that submits an Environmental Evaluation 18 application after January 12, 2016, sha...</i>
cod_4153_pre2016	complete EEA before 2016-01-12 keeps the requirements in effect on 2016-01-12	2016-01-12	<i>any development project that has submitted a complete Environmental Evaluation application prior to January...</i>
cod_4153_25plus	grandfathering tiers apply to projects of 25+ units with EEA on or after 2013-01-01	2013-01-01	<i>For development projects that have submitted a complete Environmental Evaluation application on or after Ja...</i>
cod_4153_on13	on-site, 25+, EEA before 2014-01-01	13	<i>prior to January 1, 2014 shall provide affordable units in the amount of 13% of the number of units constru...</i>
cod_4153_on135	on-site, 25+, EEA before 2015-01-01	13.5	<i>prior to January 1, 2015 shall provide affordable units in the amount of 13.5% of the number of units const...</i>
cod_4153_on145	on-site, 25+, EEA on or before 2016-01-12	14.5	<i>on or prior to January 12, 2016 shall provide affordable units in the amount of 14.5% of the number of unit...</i>

Claim	Field	Value	Quotation (start)
cod_4153_fee25	fee/off-site, 25+, EEA before 2014-01-01	25	<i>prior to January 1, 2014, shall pay a fee or provide off-site housing in an amount equivalent to 25% of the...</i>
cod_4153_fee275	fee/off-site, 25+, EEA before 2015-01-01	27.5	<i>prior to January 1, 2015, shall pay a fee or provide off-site housing in an amount equivalent to 27.5% of t...</i>
cod_4153_fee30	fee/off-site, 25+, EEA on or before 2016-01-12	30	<i>on or prior to January 12, 2016 shall pay a fee or provide off-site housing in an amount equivalent to 30% ...</i>
cod_4153_deadline	grandfathered tiers lapse if not approved on or before 2018-12-07	2018-12-07	<i>In the event the project has not been approved, which shall mean approval following any administrative appe...</i>
cod_4153_exempt	projects with a final first discretionary approval on or before 2016-01-12 keep their existing approvals	2016-01-12	<i>any housing development project that has procured a final first discretionary development entitlement appro...</i>
cod_4153_threshold	unit threshold	10	<i>shall apply to any housing project that consists of 10 or more units</i>
cod_4155_fee20	fee share, 10-24 units	20	<i>For housing development projects consisting of 10 dwelling units or more, but less than 25 dwelling units, ...</i>
cod_4155_fee33	fee share, 25+ owned	33	<i>the applicable percentage shall be 33% if such units are Owned Units</i>
cod_4155_fee30	fee share, 25+ rental	30	<i>the applicable percentage shall be 30% if such units are Rental Units in a Rental Housing Project</i>
cod_4155_vesting	vesting: fee fixed by the date of a complete EEA	complete EEA date	<i>The applicable amount of the inclusionary housing fee shall be determined based upon the date that the proj...</i>
cod_4155_30months	vesting lapses without a building or site permit within 30 months of approval	30 months	<i>In the event the project sponsor does not procure a building permit or site permit for construction of the ...</i>
cod_4155_timing	fee paid at the time required by Section 402(d)	402(d)	<i>at the time required by Section 402 (d)</i>
cod_4155_dbl	fee imposed on density-bonus units	yes	<i>The fee shall be imposed on any additional units or square footage authorized and developed under Californi...</i>
cod_4156_on12	on-site, 10-24 units	12	<i>the number of affordable units constructed on-site shall generally be 12% of all units constructed on the p...</i>
cod_4156_on20	on-site, 25+ owned	20	<i>For any housing development project consisting of 25 or more Owned Units, the number of affordable units co...</i>
cod_4156_on18	on-site, 25+ rental	18	<i>For any Rental Housing Project consisting of 25 or more Rental Units, the number of affordable units constr...</i>
cod_4156_esc_small	escalation 10-24: +0.5 each January 1 from 2018 to 15%	0.5	<i>Starting on January 1, 2018, and no later than January 1 of each year thereafter, MOHCD shall increase the ...</i>
cod_4156_esc_large1	escalation 25+: +1.0 for 2018 and 2019	1.0	<i>For all development projects with 25 or more Owned or Rental Units, the required on-site affordable ownersh...</i>

Claim	Field	Value	Quotation (start)
cod_4156_esc_large2	escalation 25+: +0.5 each year from 2020	0.5	<i>Starting January 1, 2020, the increase to on-site rental and ownership developments with 25 or more units s...</i>
cod_4156_caps	caps: 26 owned, 24 rental	26 / 24	<i>The total on-site inclusionary affordable housing requirement shall not exceed 26% for development projects...</i>
cod_4156_vesting	vesting: on-site share fixed by the date of a complete EEA	complete EEA date	<i>The applicable amount of the percentage required for the on-site housing units shall be determined based up...</i>
cod_4156b_same	the 2022 text keeps the rates (Ownership/Rental Housing Project wording)	20 / 18	<i>For any Ownership Housing Project consisting of 25 or more units, the number of Affordable Units constructe...</i>
inc2023_effective	Ord. 201-23 effective	2023-11-12	<i>230855 0201-23 11/12/2023 Planning, Administrative Codes - Development Impact Fee Reductions</i>
a415_pipeline	Pipeline Project: approved before 2023-11-01 with no first construction document by then	2023-11-01	<i>"Pipeline Proiect" means a residential or live/work proiect that (l) is subiect to the Inclusionary Afforda...</i>
a415_final_approval	Final Approval: approval of the first Development Application, unless appealed	first development application	<i>"Finally Approved" or "Final Approval" shall mean(l) approval of a proiect's first Development Application,...</i>
a415_request	pipeline sponsors may request the reduction on or before 2026-11-01	2026-11-01	<i>On or before November 1, 2026, pro;ect sponsors of Pipeline Pro;ects shall be entitled to request a modifc...</i>
a415_fee164	pipeline fee share, 10+ units	16.4	<i>Ownership or Rental Housing Pipeline Pro;ects consisting of:J:a 10 units or more. the applicable percentage...</i>
a415_onsite12_small	pipeline on-site share, 10-24 units	12	<i>For Pipeline Projects consisting of 10 units or more, but less than 25 units, the applicable percentage sha...</i>
a415_onsite12_large	pipeline on-site share, 25+ units	12	<i>For Pipeline Proiects consisting of 25 units or more. the number of Affordable Units constructed on-site sh...</i>
a415_offsite164	pipeline off-site share, 25+ units	16.4	<i>For Pipeline Proiects consisting of 25 units or more. the applicable percentage shall be 16. 4%</i>
b415_window	415B: approved 2023-11-01 to 2026-11-01, first construction document within 30 months	2023-11-01 to 2026-11-01	<i>Finally Approved, as defined in Planning Code Section 415A.2, between November 1, 2023 and November 1, 2026...</i>
b415_fee205	415B fee share, 25+ units	20.5	<i>SB.1. AFFORDABLE HOUSING FEE. If a proiect sponsor elects to pay the a/fordable housing fee under Section 4...</i>
b415_onsite15	415B on-site share, 25+ units	15	<i>consisting of25 or more units, the number of Affordable Units constructed on-site shall be 15% of all units...</i>
area_specific_rates	areas with their own requirement: SUDs, area plans, 415.3(d), 419 (UMU), 428	area-specific	<i>located in an area with a specific affordable housing requirement set forth in a Special Use District, Area...</i>
b415_sunset	415B expires 2026-11-01 unless extended	2026-11-01	<i>This section 415B shall expire by operation oflaw on November 1, 2026</i>

Claim	Field	Value	Quotation (start)
o201_operative	Section 7 (the new 415.3-415.7) operative	2026-11-21	<i>Section 7 of this ordinance, amending Planning Code Section 415.3, 415.5, 415.6, 415.7, 419.3, 428 and 428....</i>
o201_2026_fee27	2026 schedule: fee share, 25+ owned	27	<i>For development projects consisting of 25 units or more, the applicable percentage shall be 27%J.:J-% if su...</i>
o201_2026_fee245	2026 schedule: fee share, 25+ rental	24.5	<i>applicable percentage shall be 24.5o/oJ.f)!#, if the development project is a Rental Housing Project</i>
o201_2026_onsite15	2026 schedule: on-site share, 10-24 units	15	<i>consisting of IO dwelling units or more, but less than 25 dwelling units, the number of affordable units co...</i>
o201_2026_fee20	2026 schedule: fee share, 10-24 units	20	<i>(A) For housing development projects consisting of 10 units or more, but less than 25 units, the applicable...</i>
o201_2026_on20o	2026 schedule: on-site share, 25+ ownership	20	<i>(2) For any Ownership Housing Project consisting of 25 or more units, the number of Affordable Units constru...</i>
o201_2026_on18r	2026 schedule: on-site share, 25+ rental	18	<i>Rental Housing Project consisting of 25 or more units, the number of Affordable Units constructed on-site sh...</i>
o201_2026_off27o	2026 schedule: off-site share, 25+ ownership	27	<i>Ownership Housing Project consisting of 25 or more units, the number of Affordable Units constructed off-si...</i>
o201_2026_esc	2026 schedule: the 25+ escalation restarts on 2028-01-01	2028-01-01	<i>Starting on January 1, 2028, and no later than January 1 of ea</i>
fee_402d_timing	all impact fees due at the first construction document	first construction document	<i>All impact fees are due and payable to the Development Fee Collection Unit at DBI at the time of, and in no...</i>
fee_409_index	annual January 1 adjustment by the Annual Infrastructure Construction Cost Inflation Estimate (not the inclusionary fee)	January 1	<i>shall adjust the dollar amount of any development fee on an annual basis every January 1 based solely on th...</i>
fee_rate_at_payment	before 2023-10-16: the rate in force when the fee is paid, whatever the filing date	payment date	<i>The adjusted fee rates apply to development impact fees paid on or after the effective date of any such fee...</i>
fee_193_approval	from 2023-10-16: types and rates fixed at Final Approval, no later increase (not the inclusionary fee)	final approval	<i>with the exception of the Inclusionary Housing Fee as set forth in Section 415 et seq., the assessment shal...</i>
fee_193_effective	Ord. 193-23 effective	2023-10-16	<i>230764 0193-23 10/16/2023 Planning, Building Codes - Development Impact Fee Indexing, Deferral, and Waivers...</i>
fee_tfr33	fees assessed by 2026-11-01 cut by 33% for projects with a first construction document within 30 months of Final Approval	33	<i>The following development fees assessed on or before November 1, 2026 shall be reduced by 33% for (I) proie...</i>
fee_tfr_tsf	the reduction covers the TSF	411A	<i>The Transportation Sustainability Fee (Section 411A)</i>
tsf_threshold	residential: more than 20 new units	21	<i>More than twenty new dwelling units</i>
tsf_base	residential base rates at adoption, 21-99 / 100+ units	7.74 / 8.74	<i>Residential, 21-99 units \$7.74 for all gsf of Residential use in the first 99 dwelling units</i>
tsf_created	created by Ord. 200-15, effective 2015-12-25	2015-12-25	<i>Added by Ord. 200-15 , File No. 150790, App. 11/25/2015, Eff. 12/25/2015</i>

Claim	Field	Value	Quotation (start)
cc.threshold	residential: at least one net new unit	1	<i>At least one net new dwelling unit</i>
cc.created	created by Ord. 2-16, effective 2016-02-18	2016-02-18	<i>Added by Ord. 2-16 , File No. 150793, App. 1/19/2016, Eff. 2/18/2016</i>
cc.base	base rates at adoption, 10+ / up to 9 units	1.83 / 0.91	<i>Residential projects of 10 or more units Residential Projects of up to 9 units \$1.83/gsf \$0.91/gsf</i>
jhl_nonres	applies only to projects adding 25,000+ gsf of commercial uses	non-residential	<i>that increases by 25,000 or more gross square feet the total amount of any combination of the following use...</i>
area_en_start	Eastern Neighborhoods infrastructure fee in effect from	2008-12-19	<i>(Table 423.3B). 12/19/2008</i>
area_mo421_start	Market and Octavia community infrastructure fee in effect from	2008-04-03	<i>(Table 421.3B). 4/3/2008</i>
area_mo416_start	Market and Octavia affordable housing fee in effect from	2008-05-30	<i>(Table 416.3A). 5/30/2008</i>
area_rh_start	Rincon Hill community infrastructure fee in effect from	2005-08-19	<i>(Table 418.3B). 8/19/2005</i>
area_soma_start	SOMA community stabilization fee in effect from	2005-08-19	<i>\$11.65 per gross square foot. 8/19/2005</i>
area_vv_start	Visitation Valley fee in effect from	2005-11-18	<i>\$4.87 per square foot 11/18/2005</i>
area_bp_start	Balboa Park fee in effect from	2009-04-17	<i>(Table 422.3B). 4/17/2009</i>
area_tc_start	Transit Center fees in effect from	2012-09-07	<i>Added by Ord. 182-12 , File No. 120665, App. 8/8/2012, Eff. 9/7/2012</i>
area_cs_start	Central SoMa fees in effect from	2019-01-12	<i>Added by Ord. 296-18 , File No. 180184, App. 12/12/2018, Eff. 1/12/2019</i>
sb330_freeze	a housing project is subject only to the standards in effect at a complete preliminary application	preliminary application	<i>a housing development project shall be subject only to the ordinances, policies, and standards adopted and ...</i>
sb330_index_exception	exception: automatic annual fee adjustment by a cost index	cost index	<i>an increase resulting from an automatic annual adjustment based on an independently published cost index th...</i>
sb330_chapter	SB 330 chaptered	Stats. 2019, ch. 654	<i>Senate Bill No. 330 CHAPTER 654</i>
sb330_approved	SB 330 approved by the Governor	2019-10-09	<i>Approved by Governor October 09, 2019.</i>
gov_standards_fees	"ordinances, policies, and standards" includes development impact fees	yes	<i>including those relating to development impact fees, capacity or connection fees or charges, permit or proc...</i>